

NO. 141-370402-25**WEINSTEIN MANAGEMENT CO.,
INC. AND WMCi DALLAS X, LLC,
Plaintiffs and Counter-Defendants,****v.****KATHRYN COPELAND,
Defendant and Counter-Plaintiff.**§
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§**IN THE DISTRICT COURT OF****TARRANT COUNTY, TEXAS****141ST JUDICIAL DISTRICT****Motion for Appointment of Counsel Under 42 U.S.C. § 3613(b)(1)**

Defendant/Counterclaimant Kathryn M. Copeland respectfully moves this Court to appoint counsel to represent her in this matter pursuant to 42 U.S.C. § 3613(b)(1) and Title II of the Americans with Disabilities Act, 42 U.S.C. § 12132.

Defendant respectfully requests that this Motion be heard on submission at the Court's earliest convenience for the sake of creating better structure to ongoing proceedings.

I. STATUTORY AUTHORITY AND STANDARD**Jurisdiction and Authority**

This Court has jurisdiction over Defendant's federal Fair Housing Act claims under 42 U.S.C. § 3613(a)(1)(A), which grants **concurrent jurisdiction** to state courts. Texas state courts routinely adjudicate FHA claims, and this Court's exercise of such jurisdiction is well-established.

The Fair Housing Act authorizes this Court to appoint counsel for litigants alleging housing discrimination:

Upon application by a person alleging a discriminatory housing practice or a person against whom such a practice is alleged, the court may—(1) appoint an attorney for such person.

42 U.S.C. § 3613(b)(1) (emphasis added).

This appointment authority is **self-executing**—the statute itself empowers this Court to appoint counsel when warranted by the circumstances, without requiring separate federal court involvement or additional procedural mechanisms.

Standard for Appointment

Courts applying § 3613(b)(1) consider: (1) the litigant's financial inability to retain counsel; (2) the complexity of the case; (3) the litigant's ability to present the case; and (4) the likelihood of success on the merits. While some employment discrimination cases apply additional factors such as diligence in seeking counsel, *see Castner v. Colorado Springs Cablevision*, 979 F.2d 1417, 1421 (10th Cir. 1992), the FHA's appointment provision is broader and focuses on the totality of circumstances. Here, Defendant satisfies all criteria, including diligence. *See* Declaration of Kathryn M. Copeland (Ex. 1), ¶¶ 14-19.

II. FINANCIAL INABILITY

Defendant filed a Statement of Inability to Afford Payment of Court Costs on September 22, 2025. Plaintiffs did not object. Defendant also has an approved IFP order from federal court in an unrelated matter, reflecting the same financial circumstances. (Ex. A, *September 23, 2025 Order*.)

Defendant has:

- Zero income since displacement in June 2025
- Hotel lodging costs consuming all available resources
- Medical expenses preventing any fee payment
- Ongoing custody-related financial obligations
- No fixed address or stable housing

Defendant respectfully requests that the Court take judicial notice of her September 22, 2025 Statement of Inability to Afford Payment of Court Costs and, if helpful, can provide a copy of the federal court IFP order.

III. DILIGENCE IN SEEKING COUNSEL

Although the FHA does not impose a statutory "diligence" requirement, Defendant has made extensive, good-faith efforts to secure private counsel. Despite contacting over a dozen attorneys and organizations—including ACLU of Texas, Legal Aid of Northwest Texas, plaintiff-side mold/toxic tort firms, and civil rights specialists—Defendant remains unrepresented. **Defendant has attached as exhibits the rejection correspondence from ACLU of Texas, Just Well Law (Kristina Baehr), and the U.S. Department of Justice.**

Attorneys cited case complexity, conflicts, firm capacity constraints, and the mix of injunctive relief with contingency-unsuitable claims. Defendant's documented cognitive disabilities and hotel displacement severely limited her capacity to conduct exhaustive attorney searches while managing emergency filings, regulatory complaints, and medical crises.

Defendant's detailed outreach efforts are documented in her Declaration filed as Exhibit B, ¶¶ 14-19.

The interactive accommodation process required by the FHA should not be further delayed by requiring a disabled, displaced litigant to exhaust attorney searches that her functional limits make unsustainable.

IV. CASE COMPLEXITY

This case involves multiple complex statutory frameworks requiring expert coordination:

Opposing Counsel's Own Characterization:

In their November 21, 2025 correspondence (attached as Ex. C), Plaintiffs' counsel explicitly acknowledges the scope and complexity of this matter:

"Given the voluminous and involved counter claims you have asserted and the \$17 million in damages you seek, I will need additional time for your deposition—and am requesting to depose you for an additional 3 hours—9 hours total."

Plaintiffs' counsel's request for a **9-hour deposition over two consecutive days**—triple the standard time—is itself evidence that this case exceeds the capacity of what a pro se litigant with documented brain injury, POTS, and stamina limitations can manage.

Discovery Demands Alone Require Coordinating Dozens of Providers:

The same November 21 letter demands disclosure of:

"the physicians referenced in your 'reproductive harm' claim, occupational therapists, physical therapists and home healthcare providers referenced in your pleadings, physicians involved in any diagnosed 'brain trauma', physicians/medical professionals involved in any diagnosed gastrointestinal issues/weight loss issues, physicians/medical professionals involved in the alleged chronic fatigue, physicians/medical professionals involved in any diagnosed respiratory conditions, physicians/medical providers who have diagnosed and/or treated you for: dermatologic symptoms, hand tremors/weaknesses and balance impairment, chronic migraines, autoimmune instability, all medical professionals/providers who were involved in ordering, interpreting and/or diagnosing and providing care to you based upon MRI findings, ultrasounds, blood panels and genetic and allergen sensitivity testing, all physicians/medical providers (to include psychologists, therapists) for referenced PTSD, all physicians/medical providers who have been involved in diagnosing and/or treating the following conditions: Ehlers-Danlos Syndrome (EDS), Postural Orthostatic Tachycardia Syndrome (POTS), and Mast Cell Activation Syndrome (MCAS)..."

This demand alone requires identifying, contacting, and coordinating records production from **dozens of medical providers across multiple specialties**—occupational therapy, physical therapy, neurology, gastroenterology, cardiology, immunology, psychology, genetic testing labs, and allergen sensitivity testing facilities—while simultaneously managing the substantive legal claims.

Statutory Frameworks Involved:

- Fair Housing Act (42 U.S.C. § 3601 et seq.)
- Americans with Disabilities Act Title II (42 U.S.C. § 12132)
- Texas Property Code (habitability, retaliation, security deposit)
- Texas Deceptive Trade Practices Act
- Common law (constructive eviction, negligence, breach of contract)
- Insurance bad faith and regulatory complaints
- Evidence preservation and chain-of-custody protocols under IICRC S520 and EPA guidelines

V. DISABILITY FUNCTIONAL LIMITS

Defendant's inability to litigate this case effectively stems not from lack of legal knowledge, but from **disability-related functional limitations** that prevent sustained, complex litigation while medically displaced.

Documented Disabilities:

- Traumatic brain injury with cognitive and executive function deficits
- Mast cell activation syndrome (MCAS) causing brain fog and severe reactivity
- Postural orthostatic tachycardia syndrome (POTS) limiting stamina
- Long COVID with chronic fatigue and reduced functional capacity
- Post-traumatic stress disorder exacerbated by displacement

Functional Impact on Litigation Capacity:

Defendant has **episodic capacity**—she can draft filings during high-function periods but cannot sustain the intensive, real-time responsiveness that discovery and trial preparation demand.

Medical records already on file document:

- Cognitive processing delays requiring extended time for complex tasks
- Executive function deficits affecting multi-step planning and coordination
- Physical stamina limitations preventing full-day court appearances
- Communication barriers requiring accommodations for effective interaction

Critical Distinction:

Knowing the law $\neq$ having the functional capacity to execute complex federal civil rights litigation while medically displaced.

Defendant's legal background allows her to identify claims and frame issues, but her documented disabilities prevent her from:

- Managing real-time discovery disputes and depositions
- Coordinating multiple expert witnesses across medical and technical fields
- Responding to time-sensitive motions and emergency filings
- Appearing for extended hearings and trial proceedings
- Maintaining chain-of-custody oversight during evidence preservation

Asymmetry of Representation Creates Access-to-Justice Problem:

Defendant faces two experienced attorneys who have made clear they will provide no procedural assistance and are prepared to seek sanctions. From the November 21, 2025 correspondence:

"Neither Ms. Sortor nor I will assist you, in any manner, to appropriately apply and/or use the rules. We do not do this for any pro se Plaintiff, nor do we do this for opposing counsel, recognizing here: you are both."

And:

"Moving forward, while we will continue to zealously represent our clients by doing what needs to be done in terms of responding to any particular Motion you file (to include those filed as emergent matters), we will be requesting sanctions, if we deem such appropriate... This is not a threat Ms. Copeland, it is intended to provide you notice of where I stand."

Even Plaintiffs' counsel acknowledges the dual burden Defendant carries—she is simultaneously the disabled, displaced litigant **and** the attorney of record attempting to litigate against two seasoned attorneys with full firm resources. This structural asymmetry, combined with

Defendant's documented brain injury and displacement, creates a fundamental access-to-justice problem that appointed counsel would remedy.

VI. TITLE II ADA ACCESS OBLIGATION

This Court has an independent obligation under Title II of the ADA to provide Defendant with **meaningful access** to its proceedings.

No qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity.

42 U.S.C. § 12132.

Appointment of counsel is a **reasonable modification** that allows a qualified person with disabilities to participate in federal civil rights litigation when disability prevents effective self-advocacy. Defendant is not asking for a favor—she is requesting an access accommodation that the ADA requires and that § 3613 authorizes.

VII. UPCOMING RESOURCE DEMANDS

The case is entering phases that require intensive, sustained legal representation:

Immediate Needs:

- Monitoring mandatory injunction compliance (protocol-directed contents handling)
- Discovery responses and document production
- Expert retention and coordination across multiple disciplines
- Evidence preservation oversight (chain-of-custody for contaminated property)

Trial Preparation:

- Witness preparation and deposition defense
- Expert report review and Daubert challenges
- Trial exhibit preparation (medical records, correspondence, regulatory filings)
- Complex damages presentation (\$16M+ actual damages; \$50M+ with enhancements)

These demands exceed what Defendant can manage pro se given her disability functional limits and displacement instability.

VIII. LIKELIHOOD OF SUCCESS ON THE MERITS

Defendant has alleged—and Plaintiffs have judicially admitted—facts supporting strong FHA and ADA claims:

Undisputed Facts:

- June 18, 2025 BioTex report: apartment "unfit for human occupancy"
- September 8, 2025 MAC protocol: "ALL contents contaminated," "NO negative pressure"
- Plaintiffs' admissions: remediation ongoing, >\$40,000 lodging spent, "full environmental cleaning" required
- Defendant's repeated requests for ADA-compliant interim housing—denied
- August 6, 2025 retaliatory notice to vacate despite uninhabitable conditions
- 60+ alleged acts of retaliation following protected tenant activity

Legal Strength:

Defendant's correspondence (already in evidence) demonstrates clear disability disclosure and education of landlord regarding FHA/ADA obligations. Plaintiffs acted with knowledge of their duties yet failed to provide effective accommodations—supporting claims of knowing and intentional violations.

IX. CONCLUSION AND PRAYER

Defendant meets all criteria for appointment of counsel under § 3613(b)(1):

- ✓ Financial inability (established via prior IFP filing)
- ✓ Diligence in seeking counsel (documented outreach to 12+ attorneys/organizations)
- ✓ Case complexity (federal civil rights + state statutory claims + expert coordination)
- ✓ Functional inability to litigate effectively (disability limits despite legal knowledge)
- ✓ Strong likelihood of success (undisputed facts support FHA/ADA violations)

Appointment of counsel is also required as a Title II ADA reasonable modification to provide Defendant meaningful access to this Court's proceedings.

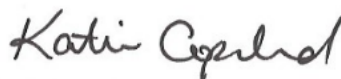
No Burden on Judicial Resources

Appointment poses no burden on judicial resources. This case involves multiple fee-shifting statutes (FHA, DTPA, Property Code, ADA, § 1988). If Defendant prevails, this Court may award reasonable attorney's fees against Plaintiffs—not the Court and not Defendant. *See* Declaration ¶¶ 23-26. Plaintiffs initiated this litigation and engaged in conduct Defendant alleges constitutes statutory violations. Fee-shifting ensures appropriate cost allocation.

Defendant respectfully requests that this Court:

1. **Grant this Motion** and appoint counsel to represent Defendant in all proceedings;
2. **Refer this matter** to the local volunteer lawyer program, federal pro bono panel, or other appropriate referral mechanism;
3. **Hear this Motion on submission** at the Court's earliest convenience for the sake of creating better structure to ongoing proceedings; and
4. Grant such other relief as the Court deems just and proper.

Respectfully submitted,



KATHRYN COPELAND

State Bar No. 24086056

405 Crawford St. #2145

Fort Worth, Texas 76104

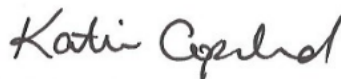
Tel: (817) 789-8498

Katie@CopelandLawTexas.com

Defendant and Counter-Plaintiff, Attorney Pro Se

UNSWORN DECLARATION PURSUANT TO TEXAS CIVIL PRACTICE & REMEDIES CODE 132

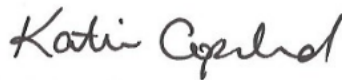
“My name is Kathryn Marie Copeland, my date of birth is June 28, 1985 and my current address is 405 Crawford Street #2145, Fort Worth, TX 76104 in the United States of America. I declare under penalty of perjury that the foregoing is true and correct. Executed in Tarrant County, State of Texas, on the 23rd day of November 2025.”



KATHRYN COPELAND

CERTIFICATE OF CONFERENCE

A conference was held on October 10, 2025 via email with Glynis Zavarelli on the merits of this motion. A reasonable effort was made to resolve the dispute without court intervention and the effort failed. Therefore, it is presented to the Court for determination.



KATHRYN COPELAND

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of this motion was served on November 23, 2025 via electronic service to:

Glynis L. Zavarelli
Wentz & Zavarelli, LLP
gzavarelli@wandzlaw.com

Michelle S. Sortor
Wentz & Zavarelli, LLP
msortor@wandzlaw.com



KATHRYN COPELAND

WEINSTEIN MANAGEMENT CO.,
INC. AND WMCi DALLAS X, LLC,
Plaintiffs and Counter-Defendants,

v.

KATHRYN COPELAND,
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IN THE DISTRICT COURT OF

TARRANT COUNTY, TEXAS

141ST JUDICIAL DISTRICT

Declaration of Kathryn Copeland

IN SUPPORT OF MOTION FOR APPOINTMENT OF COUNSEL

I, Kathryn M. Copeland, declare under penalty of perjury:

I. Diagnosed Disabilities

1. I have been diagnosed with multiple chronic and disabling conditions, including:

- Traumatic brain injury (TBI) with cognitive and executive function deficits;
- Mast cell activation syndrome (MCAS);
- Postural orthostatic tachycardia syndrome (POTS);
- Long COVID with chronic fatigue; and
- Post-traumatic stress disorder (PTSD), among other related conditions.

2. Medical documentation supporting these diagnoses and their impact has already been filed

with this Court, including but not limited to:

- The **September 29, 2025** emergency application, which attached letters from Dr. Johnson, Dr. Tran, and Dr. Huang, as well as QEEG/neurocognitive testing documenting cognitive and visual impairments;
- The **October 23, 2025** emergency motion, which attached additional medical causation records (including materials from Dr. Johnson and Dr. Conte) and mycotoxin test results;
- The **September 10, 2025** emergency room records documenting head trauma from the hotel assault, cervical and thoracic strain, and activity limitations; and
- The **August 14, 2025** ADA/FHA request, which attached disability documentation supporting my accommodation requests.

3. I also have a Statement of Inability to Afford Payment of Court Costs on file in this case reflecting my current financial status.

II. Functional Impact on My Ability to Litigate

4. These disabilities create specific and substantial barriers to managing complex civil litigation, especially a housing, mold, and civil-rights case of this scope.

Cognitive Limitations

5. Because of my brain injury and long COVID, I:
 - Require extended processing time for complex legal and factual tasks;
 - Struggle with multi-step planning, organization, and coordination (executive function deficits);
 - Have difficulty tracking multiple overlapping deadlines, discovery requests, and responses; and
 - Experience memory, sequencing, and attention problems that make trial preparation and live evidentiary hearings exceptionally difficult without assistance.

Physical Limitations

6. My POTS, MCAS, hypermobile EDS, and long COVID cause:
 - Severe fatigue that often confines me to bed for extended periods;
 - Difficulty remaining upright in a seated position due to connective tissue frailty/laxity from hypermobile Ehlers-Danlos Syndrome (defective collagen production at the DNA level);
 - Fluctuating heart rate and blood pressure that make prolonged court appearances or all-day hearings extremely difficult; and
 - Sensitivity to environmental triggers (including mold and chemical exposures) that limit where and how I can work.
7. Because I have been displaced from my home and have had to move between hotels and temporary accommodations, I do not have a stable, quiet, or safe workspace where I can consistently review discovery, organize evidence, or prepare for hearings.

Episodic Capacity

8. My capacity to work is episodic. I have brief "high-function" windows when I can draft or edit filings. Outside those windows, my fatigue, pain, and cognitive symptoms prevent sustained effort.
9. As a result:
 - I can sometimes draft a motion or response if I have several days and no competing crisis;
 - I cannot reliably handle day-to-day case management, rolling discovery responses, or real-time motion practice; and
 - Emergency filings (for housing, medical access, and retaliation) have consumed the limited bandwidth I have, leaving almost no reserve for systematic discovery, expert coordination, or trial preparation.

III. Case Demands Beyond My Capacity

10. This case now requires, among other things:
 - Coordination of medical causation experts, mold assessment/remediation experts, and contents valuation experts;
 - Ongoing monitoring and response to third-party subpoenas and depositions on written questions issued to my medical providers, therapists, and service providers;
 - Oversight of chain-of-custody and remediation protocols for contaminated property;
 - Preparation for potential Daubert challenges and expert report review; and
 - Presentation of damages that currently exceed \$16 million in claimed actual damages, plus statutory and punitive components.
11. I cannot realistically manage all of these demands while:
 - Medically compromised;
 - Displaced from my home; and
 - Simultaneously navigating custody proceedings and other related legal matters in separate courts.

IV. Collateral Legal Matters Competing for Limited Capacity

12. In addition to this housing and civil-rights case, I am simultaneously navigating ongoing custody proceedings in the Second Court of Appeals (Cause No. 02-24-00278-CV) that directly affect my ability to see my daughters. Opposing counsel's November 21, 2025 letter (attached as Ex. A) explicitly demands that I disclose "every person—professional and lay persons—involved in any matter involving your 'children's displacement'" and states that I have "opened the door on all matters involving the custody of your children and the orders entered which prohibit you to have unsupervised contact with them."
13. The interplay between this housing case and my custody case is not incidental. My displacement from safe, ADA-compliant housing directly impacts my ability to exercise possession of my children. Managing both matters simultaneously—while disabled, displaced, and pro se—is functionally impossible. My daughters' interests require that this housing case be efficiently and competently litigated so that stable housing can be restored and family reunification can proceed. Without appointed counsel in this case, I cannot protect either my own federal rights or my children's interest in a stable, safe relationship with their mother.

V. Efforts to Secure Counsel

14. I have made diligent, good-faith efforts to obtain counsel for this matter but have been unable to secure representation.
15. Over the last several months, I have consulted with, contacted, or attempted to retain multiple attorneys and firms with experience in landlord–tenant, toxic tort, personal injury, and/or civil-rights litigation, including but not limited to:

- ACLU of Texas, who stated they were unable to take the case on 9/30/25;
- Legal Aid of Northwest Texas, who declined representation due to limited resources;
- U.S. Department of Justice, contacted 6/30/25, still reviewing request;
- Christopher Payne, who represents another tenant (Megan White) in a separate case against Weinstein/Weinstein-related entities, who ultimately declined to take the case after ongoing retaliatory conduct by Weinstein;
- Karen Ferris, regarding potential assistance and referrals, who ultimately declined to take the case after I was sued by Weinstein;
- Robert Kisselburgh, a plaintiff's personal-injury attorney who is transitioning from practice to mediation;
- Dax Faubus, who discussed the case with me on 11/22/25 and ultimately declined to take it as it is outside the focus of his practice;
- Kristina Baehr's firm (Just Well Law / Well Law), which focuses on mold and environmental injury, declined as not the right fit on 6/11/25;
- Other plaintiff-side firms and attorneys recommended to me for mold and bad-faith insurance claims, including attorneys such as Craig Eiland and Patrick Gurski;
- Disability Rights Texas and attorneys (including Rachel C.) regarding the disability rights and FHA/ADA aspects (9/4/25 and 9/23/25 emails); and
- Dwain Dent, whose office I contacted regarding the many dimensions of my case in July 2025, but ultimately declined to take the case.

16. Some attorneys declined based on conflicts or firm focus; others indicated that the case did not fit their docket, risk profile, or current capacity—particularly given the mix of injunctive relief, complex medical causation, and the need for substantial up-front work. None were willing and able to step in as full-scope counsel in this Court.

17. I have also had limited, time-bound help from attorney John Douglas. Due to time limitations and scope of practice, he is not currently representing me in this case and cannot currently serve as my lead counsel on the FHA and related claims.

18. I have also consulted with Legalist regarding litigation funding to pay an hourly lawyer + contingency and other expenses, but they declined due to my pro se status.

19. Despite these repeated efforts, I remain unrepresented in this complex housing and civil-rights case. My financial situation, documented disabilities, and displacement significantly limit my ability to continue searching for counsel while also attempting to respond to ongoing litigation.

VI. Legal Knowledge vs. Functional Capacity

20. I am a licensed Texas attorney and previously practiced family law. My legal training allows me to understand the nature of my claims and the basic legal framework.

21. However, my legal education does not equate to the functional capacity to litigate this complex case alone while disabled and displaced. I can sometimes identify claims and draft filings during brief high-function periods, but:

- I cannot reliably track and respond to all discovery and motion deadlines;
- I cannot manage live evidentiary hearings or trial practice without substantial risk of cognitive overload and error; and
- I cannot coordinate experts and evidence at the pace required to fairly try this case against represented opponents.

22. Without appointed counsel, there is a serious risk that my FHA and disability-related claims will never be fully and fairly presented, not because they lack merit, but because I am physically and cognitively unable to prosecute them alone.

VII. Fee-Shifting Mechanisms Ensure Plaintiffs, Not the Court or Ms. Copeland, Bear the Ultimate Cost

23. I am not asking this Court to fund private civil counsel out of judicial resources. This is a statutory fee-shifting case. If I prevail on my claims under the Fair Housing Act, the Texas Deceptive Trade Practices Act, the Texas Property Code, the ADA, and related civil-rights statutes, this Court will have authority to award reasonable and necessary attorney's fees and costs against Plaintiffs. *See* 42 U.S.C. § 3613(c)(2); Tex. Bus. & Com. Code § 17.50(d); Tex. Prop. Code § 92.0563, § 92.331; 42 U.S.C. §§ 12205, 1988.

24. Plaintiffs initiated this lawsuit and have continued to prosecute it in a manner that, as alleged in my counterclaims, constitutes constructive eviction, bad-faith retaliation, and disability discrimination. I have asserted colorable claims that their conduct violates these statutes as a matter of law. Appointment of counsel at this stage, with the understanding that any compensation would come, if at all, through fee-shifting against Plaintiffs in the event I prevail, is consistent with the remedial structure Congress and the Texas Legislature created for exactly this type of case.

25. To the extent the Court determines that specific aspects of Plaintiffs' conduct in this litigation (e.g., misuse of discovery or bad-faith motion practice) warrant sanctions, the Court also retains authority under Texas Rules of Civil Procedure 13 and 215 and Chapter 10 of the Civil Practice & Remedies Code to award targeted attorney's fees as sanctions at the appropriate time. I do not ask the Court to resolve sanctions issues now, but note that the primary and appropriate payors of any attorney's fees in this matter are Plaintiffs, not the Court and not myself.

26. Further, my Motion for Partial Summary Judgment is set before the Court on December 4, 2025. If the Court finds constructive eviction as a matter of law, or finds clear Property Code / DTPA / FHA / retaliation violations, then liability will no longer be speculative and it will be established that I need counsel to handle damages, experts, and trial efficiently.

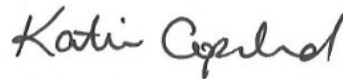
VIII. Conclusion

27. I am requesting appointment of counsel not because I lack legal knowledge, but because my documented disabilities and current circumstances prevent me from effectively accessing and participating in this Court's proceedings in a meaningful way.

28. Appointment of counsel under 42 U.S.C. § 3613(b)(1) would:

- Allow my FHA and related claims to be properly developed and presented;
- Help stabilize this case, reduce emergency motion practice, and streamline issues; and
- Assist the Court in managing the case toward trial or settlement without forcing a brain-injured, disabled pro se litigant to conduct complex civil-rights litigation alone.

Respectfully submitted,



KATHRYN COPELAND

State Bar No. 24086056

405 Crawford St. #2145

Fort Worth, Texas 76104

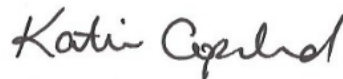
Tel: (817) 789-8498

Katie@CopelandLawTexas.com

Defendant and Counter-Plaintiff, Attorney Pro Se

**UNSWORN DECLARATION PURSUANT TO
TEXAS CIVIL PRACTICE & REMEDIES CODE 132**

“My name is Kathryn Marie Copeland, my date of birth is June 28, 1985 and my current address is 405 Crawford Street #2145, Fort Worth, TX 76104 in the United States of America. I declare under penalty of perjury that the foregoing is true and correct. Executed in Tarrant County, State of Texas, on the 23rd day of November 2025.”



KATHRYN COPELAND

Exhibit A

UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF TEXAS
FORT WORTH DIVISION

KATHRYN COPELAND,

Plaintiff,

v.

No. 4:25-cv-00137-P

JESUS NEVAREZ, JR.,

Defendant.

ORDER

Before the Court is the Motion for Leave to Proceed In Forma Pauperis on Appeal. ECF No. 16. Having considered the motion, it is hereby **GRANTED**.

SO ORDERED on this **23rd day of September 2025**.

A handwritten signature in black ink, reading "Mark T. Pittman", written over a horizontal line.

Mark T. Pittman

UNITED STATES DISTRICT JUDGE

Exhibit B

Subject: Inquiry
Date: Wednesday, June 11, 2025 at 2:55:00 PM Central Daylight Time
From: Jennifer Fann <jennifer@well.law>
To: Copeland, Katie <K.M.COPELAND@tcu.edu>
Attachments: Texas Resources.pdf

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hello Katie,

I'm so sorry that you're going through this, and thank you for trusting us by reaching out. We know that facing challenges related to toxic exposure can feel overwhelming, and we truly wish we could take on every case that comes our way.

While neither our firm nor our referral partners are the right fit for your situation at this time, we still want to support you however we can. If you'd like to connect, you're welcome to schedule a free resource call with us [here](#).

In the meantime, here are some Texas resources we wish we'd had when we were in your shoes.

If you're continuing to build your case, these steps tend to be especially important:

- **Get third-party certified mold testing** (excluding home test kits, self-collected samples sent to a lab, or results provided by a landlord)
- **Build your medical record** by visiting doctors to document the symptoms you've experienced. Our goal is for you to get the care you need—and ultimately, to get well.
- **Inform responsible parties** of the issues and keep detailed records of all communications
- **Gather photos, videos, or other documentation** of the unsafe conditions
- **Create a clear timeline** of events, symptoms, and communications with landlords, builders, etc.

I strongly encourage you to connect with another attorney as soon as possible. What doesn't fit our practice may be a great match for another firm. If you do find another lawyer, we'd be happy to help them! Through our Safe Housing Collaborative, we provide free resources, host regular office hours (led by Kristina), offer an annual summit, and share updates through a dedicated listserv. We want these cases to succeed, whether we're counsel or not. You are welcome to introduce your new attorney to us by email at ben@well.law, or direct them to our [website](#).

Please note that since we're not representing you, we won't be able to track the statute of limitations, changes in the law, or your circumstances that may impact the strength of your case.

We're cheering you on and are wishing you all the best as you move forward.

--

Jennifer Fann

Client Advocate

[Home](#) | [Instagram](#) | [LinkedIn](#)

o. 512-714.6919

NOTICE OF CONFIDENTIALITY: The information contained in and transmitted with this e-mail is SUBJECT TO THE ATTORNEY-CLIENT and ATTORNEY WORK PRODUCT PRIVILEGE and is CONFIDENTIAL. It is intended only for the individual or entity designated above. You are hereby notified that any dissemination, distribution, copying, use or reliance upon the information contained in and transmitted with this e-mail by or to anyone other than the addressee designated above by the sender is unauthorized and strictly prohibited. If you have received this e-mail in error, please notify the sender by reply immediately. Any e-mail erroneously transmitted to you should be immediately destroyed.

JUST • WELL • LAW

Subject: Response: Your Civil Rights Division Report - 631436-JLQ from the Housing and Civil Enforcement Section
Date: Monday, July 7, 2025 at 4:04:41 PM Central Daylight Time
From: DOJ Civil Rights - Do Not Reply <civilrightsdonoreply@mail.civilrights.usdoj.gov>
To: [REDACTED]



U.S. Department of Justice
Civil Rights Division

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Dear Kathryn Copeland,

Thank you for contacting the Department of Justice on June 30, 2025. The Housing and Civil Enforcement Section is reviewing your report. In this letter, we explain how we will review your report and provide you with other options to pursue.

Your report number is 631436-JLQ. If you want to ask us about your report, this number will help us locate your information.

What happens now?

We are reviewing your report. We look at reports like yours to help us select new cases or pursue existing ones. We will review your report to see if it fits into one of these two categories. If so, we may contact you for more information.

Unfortunately, we cannot investigate every complaint. Our office generally handles only cases arising from widespread problems affecting groups of people. We do not investigate complaints based on individual claims of discrimination. If we are unable to investigate your complaint, we will not contact you.

To avoid missing out on an opportunity to get help, we recommend that you file a complaint with

the Department of Housing and Urban Development (HUD) or Consumer Financial Protection Bureau (CFPB) as laid out below.

If you are experiencing housing discrimination:

HUD investigates individual claims of housing discrimination. This may include discrimination based on race, color, national origin, religion, sex, familial status, or disability in housing. If you are experiencing housing discrimination, we recommend that you file a complaint with HUD.

You may also file a complaint with HUD if you believe your housing rights under the Violence Against Women Act (VAWA) have been violated. HUD has provided information about VAWA's housing protections at https://www.hud.gov/program_offices/fair_housing_equal_opp/VAWA.

You can file a complaint with HUD online at https://www.hud.gov/program_offices/fair_housing_equal_opp/online-complaint, or call 1-800-669-9777 or TTY: 1-800-877-8339.

You have one year from the date of the discrimination or violation to file with HUD or they will not review your complaint.

If you need help paying your rent or utility bills:

The CFPB may help you identify resources for which you may qualify, at www.consumerfinance.gov/coronavirus/mortgage-and-housing-assistance/renter-protections/find-help-with-rent-and-utilities/.

If you are experiencing discrimination in lending or credit:

You can file a complaint with HUD at https://www.hud.gov/program_offices/fair_housing_equal_opp/online-complaint and with the CFPB at www.consumerfinance.gov/complaint.

If you would like to hire an attorney:

You may want to consult a private attorney to see if you have any rights under other federal and state laws. If you do not have an attorney, your state bar association or local legal assistance agency may be able to help. Search for a local attorney at www.lsc.gov/find-legal-aid.

For more information about credit, disability rights, and housing rights, please visit our housing resources page at <https://civilrights.justice.gov/housing-resources>.

Sincerely,

U.S. Department of Justice
Civil Rights Division

Contact

civilrights.justice.gov



U.S. Department of
Justice
Civil Rights Division
950 Pennsylvania
Avenue, NW
Washington, D.C. 20530-
0001



(202) 514-3847
1-855-856-1247 (toll-free)
Telephone Device for the
Deaf
(TTY) (202) 514-0716

Subject: ACLU of Texas Response to Complaint

Date: Tuesday, September 30, 2025 at 1:20:17 PM Central Daylight Time

From: ACLU of Texas <legalinquiries@aclutx.org>

To: Copeland, Katie <K.M.COPELAND@tcu.edu>

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.



September 30, 2025

Kathryn Copeland
405 Crawford St. Apt 2145
Fort Worth, TX 76104
817-789-8498
k.m.copeland@tcu.edu

We appreciate your bringing this matter to our attention and have reviewed the information you provided. The ACLU of Texas will not be able to assist you in this matter.

Please note that this is not an evaluation of the merits of your complaint and this communication is not intended to be taken by you as legal advice. We urge you to consult a private attorney if you wish; you may contact your local bar association or, if your community does not have one, call the Texas Lawyer Referral Service operated by the State Bar of Texas at 1-800-252-9690 or 1-877-9TEXBAR (toll-free) Monday through Friday between 8 am and 5 pm. Please note that some types of complaints must be filed within time limits established by law.

Here are resources available to you regarding your issue area:

Texas Law Help: Disability Rights Texas

<https://texaslawhelp.org/directory/disability-rights-texas>

(800) 252-9108

Provides direct legal assistance to people with disabilities whose rights are threatened or violated, protect the rights of individuals and groups of people with disabilities through the courts and justice system, educate and inform policymakers about issues that impact the rights and services for people with disabilities, inform people with disabilities and family members about their rights, and make referrals to programs and services.

Navigate Life Texas

<https://www.navigatelifetexas.org/en>

Provides informational legal tools that can help and protect children with disabilities or special health care needs no matter their age.

Disability Rights Texas

<https://www.disabilityrightstx.org>

Tel: 1-800-252-9108

Sign Language Video Phone: 1-866-362-2851

Purple 2 Video Phone: 512-271-9391

Provides information and resources regarding access, family law, financial, food, health care, housing, legal aid, mental health, utility assistance, and veterans.

Texas Education Agency (TEA): Special Education Dispute Resolution Processes

<https://tea.texas.gov/academics/special-student-populations/special-education/dispute-resolution/special-education-dispute-resolution-processes>

The Texas Education Agency (TEA) offers multiple processes for resolving disputes related to special education: individualized education program facilitation (FIEP), mediation, special education complaints, and due process hearings.

Texas Education Agency (TEA): Complaints and Investigations

<https://tea.texas.gov/about-tea/contact-us/complaints-and-investigations>

The Texas Education Agency has jurisdiction to investigate violations of school law concerning Texas public school entities (such as school districts and charter schools), certified educator certificate holders, and educator preparation programs. TEA has authority to investigate violations of IDEA by TEA as well as customer service complaints

If you have questions or concerns about this message, or to submit a new request please visit www.aclutx.org if you wish to seek our assistance in the future.

Best regards,

ACLU of Texas

This communication is for use by the intended recipient and contains information that may be privileged, confidential or copyrighted under applicable law. If you are not the intended recipient, you are hereby formally notified that any use, copying or distribution of this communication, in whole or in part, is strictly prohibited. Please advise the sender immediately. This communication does not constitute consent to the use of sender's contact information for direct marketing purposes or for transfers of data to third parties.

November 21, 2025

Via E Serve

Ms. Kathryn (Katie) Copeland

RE: Weinstein, et al v. Kathryn Copeland

Dear Ms. Copeland:

I am writing regarding various matters.

First:

Reign Restorations has space to accept the personal property items that are located in the 4th floor storage room. Please confirm that you are authorizing Weinstein to request Reign to move the fourth floor storage room items to its facility. As you have been told on multiple occasions: nothing being kept at Reign will be cleaned, absent your authorization to do so; and the items in the fourth floor storage room need to be removed (your lease expired on October 26, 2025); therefore, if you are not receptive to Reign moving these to its facility, please arrange to remove them yourself.

Next:

You have indicated in court filings that you do not know what items are located in the original storage room associated with your apartment. I am unclear as to the validity of this statement: it was the storage room assigned to you for your use, during your lease term; you, of anyone, should know what you placed in the room; however, whatever you have stored there, needs to be removed (your lease expired on October 26, 2025).

Next:

We repeatedly asked you about the balcony items –and while you still had a valid lease, we requested you to indicate if you would like the Weinstein maintenance staff to move those items from the balcony to the original storage room for your apartment. You never responded. These items need to be removed from the balcony.

Next:

You were requested to return the access devices for your apartment, to include the keys, key fob and gate access devices. It is my understanding those have not yet been returned. Please return those items.

Next:

You have signed pleadings providing the apartment as your address; this is disingenuous – though you have refused to leave the apartment in totality -keeping significant amounts of personal property in the storage rooms and on the balcony, and failing to return keys/access devices – well after your lease has expired-therefore, it is assumed you are not physically residing in the apartment; Ms. Sortor repeatedly requested for you to provide your physical address- and you have ignored those requests entirely. Please provide your physical address.

Next:

Your disclosures are incomplete.

You have not provided complete contact information for Mr. Quiram. Please do so.

You have not identified the multiple/numerous medical providers who have purportedly been involved in your care, based on the most recent Amended Answer/Amended Counter Claims asserted. Please identify those persons, with complete address and phone numbers and the requiring identifying information -and when you do so -do not omit the following: the physicians referenced in your “reproductive harm” claim, occupational therapists, physical therapists and home healthcare providers referenced in your pleadings, physicians involved in any diagnosed “brain trauma”, physicians/medical professionals involved in any diagnosed gastrointestinal issues/weight loss issues, physicians/medical professionals involved in the alleged chronic fatigue, physicians/medical professionals involved in any diagnosed respiratory conditions, physicians/medical providers who have diagnosed and/or treated you for: dermatologic symptoms, hand tremors/weaknesses and balance impairment, chronic migraines, autoimmune instability, all medical professionals/providers who were involved in ordering, interpreting and/or diagnosing and providing care to you based upon MRI findings, ultrasounds, blood panels and genetic and allergen sensitivity testing, all physicians/medical providers (to include psychologists, therapists) for referenced PTSD, all physicians/medical providers who have been involved in diagnosing and/or treating the following conditions: Ehlers-Danlos Syndrome (EDS), Postural Orthostatic Tachycardia Syndrome (POTS), and Mast Cell Activation Syndrome (MCAS) and all physicians/medical providers who have diagnosed and/or treated you for or have indicated delayed affects from mold exposure – to include as related to neurological, respiratory, hepatic, renal and immunological conditions/harm. Please update/supplement your disclosures to provide all of this information.

Additionally, please identify all hotels you have stayed at for the last 8 months (given your plead claim of 8 months of hotel to hotel instability).

Please identify every person – professional and lay persons – involved in any matter involving your "children's displacement" (you have opened the door on all matters involving the custody of your children and the orders entered which prohibit you to have unsupervised contact with them). This includes but is not limited to your ex husband and your mother. However, all other persons who have knowledge of your children being "displaced" and/or of the facts surrounding the restrictions placed upon you in terms of visits/contact, should be identified.

Please identify all individuals who have knowledge of the manner in which the alleged incidents (as alleged in your counter claims) have impacted your legal career (ie "derailed" your "legal career trajectory" – as you have alleged). Though I find that claim to be completely lacking in merit, given what happened with/to your law license and why – because you again, have opened the door on this - we need to be provided identifying information for any persons who would have knowledge of this- the manner in which your legal career has been impacted as well as those individuals who were involved in the matters that led to your law license suspension.

Please identify every person who has been in your apartment- with your authorization -and who is not a maintenance nor management staff with Weinstein, since June 1, 2025. You seem to believe this is relevant – as to Weinstein employees and/or contractors/vendors – therefore, your disclosures should reflect every person you invited into and who came into - the apartment during this same time frame.

You have not identified any professional who has indicated you have a disability- as that term is used for the ADA and/or FHA. Please identify those persons, if they exist.

You have not identified the gentleman who you connected with through Bumble and who allegedly assaulted you on September 10, 2025. Given your allegations related to this event and your mental anguish claims, whoever this person was – is a person with knowledge of relevant facts, who I will need to depose.

You have not provided any medical records or billing records with the disclosures. Please produce all responsive items now.

You have not produced the audio recordings you made of Kodi Jackson and/or others who worked for Weinstein management and maintenance, though you repeatedly referenced (in your pleadings) various comments purportedly made by those individuals. These are witness statements and need to be produced. Similarly, if you have audio recorded conversations or video of conversation/statements made by third parties pertaining to any matter relevant to either Weinstein's claims, your defensive positions and/or your counter claims -those would also be considered witness statements. Please produce all responsive items now.

Next:

You appear to be seeking as damages – the expenses Weinstein paid on your behalf (hotel and dog boarding). If I have understood your pleadings correctly, this is incredulous. I will be filing Special Exceptions as to this (and other matters).

Next:

Your allegation of failure to mitigate as to Weinstein, is wholly without merit, and nonsensical- I do not know what you are referencing as to “code required abatement”. Again, a special exception will be filed as to this allegations (and other matters)

Next:

You have referenced in recent pleadings that you do not have access to the items in the second floor and fourth floor storage rooms at the apartment complex. This is false. You have keys to both (I am assuming you retrieved the key for the fourth floor storage room from the lock box you were informed about), and as such, it is troubling that you would state this. Regardless, again, all items need to be removed (your lease expired on October 26, 2025) and again, Weinstein will request that Reign move the items in the 4th floor storage room to its facility, once you authorize this; however, absent giving that authorization and/or removing the items from both storage rooms and the balcony, Weinstein will proceed accordingly.

Next:

You have referenced the *White* case in various forums and in pleadings, as some sort of “pattern” evidence. You should know- the *White* case was not settled/resolved; instead the Weinstein entities received a Dismissal with Prejudice in that federal court case, and this occurred before your most recently filed Amended Answer/Counter Claims where you state that the case is still pending – please correct this.

Next:

You respond only to those matters that you believe benefit you (such as when you initiate a demand for information, responsive information is provided and then you attempt to argue points or make more requests for information), and repeatedly fail to respond to requests that Ms. Sortor and I have made. Please provide us the same courtesy of response.

You also, at times, make the same request for information from us, as has previously been made and to which we have responded/answered. In the past, we have given repeated response; we will not continue to do that.

Most recently –you have failed to respond to request for depositions, and the request to review the proposed scheduling order. Therefore, please provide dates you are available for the depositions of the fact witnesses we previously requested and that of your ex husband; and please advise as to the proposed Agreed Scheduling Order.

Next:

Given the voluminous and involved counter claims you have asserted and the \$17 million in damages you seek, I will need additional time for your deposition – and am requesting to depose you for an additional 3 hours – 9 hours total. Because I anticipate the need for breaks, to include a lunch break, I suggest that we do this over two consecutive dates. Please advise if you will agree to this additional time requested; if not, I will seek court intervention as to same.

Next:

Your proclivity to file “emergency” Motions and demand rulings in less than a reasonable time (when there is no “emergency” and/or you have cultivated and created circumstances, by your own actions, which is then termed by you to have resulted in an “emergency” situation), is improper. Such filings and demands (which without merit and which are actually not emergent) in turn, necessitate expedited responsive briefing/filings by us which results in Ms. Sortor and/or I re-arranging our professional and personal schedules. To date, we have exercised patience with you, in this regard.

Moving forward, while we will continue to zealously represent our clients by doing what needs to be done in terms of responding to any particular Motion you file (to include those filed as emergent matters), we will be requesting sanctions, if we deem such appropriate. You should know –in 33 years of practicing law – I have requested sanctions against an opposing party – very rarely; therefore, I do not take making such a request lightly, but again, should you continue with filing frivolous/baseless Motions (to include claiming emergency, as described herein), I will proceed accordingly. This is not a threat Ms. Copeland, it is intended to provide you notice of where I stand.

Next:

You continue to disregard the procedural rules. This is demonstrated most recently with respect to the Motion to Quash you filed-regarding records- which largely failed to identify, by name, the DWQ/Subpoenas to which the MTQ applied (instead using ambiguous phrases), did not attach any of the Notices/DWQ documents to the Motion to Quash that you intended to quash, and failed to send a copy of the MTQ to the records service (even after you were reminded to do so by Ms. Sortor). Thereafter, you failed to respond to the list Ms. Sortor sent you identifying what she believed you were attempting to quash (and indicating the records service would be so advised; which it was, and she also provided a copy to the records service).

Please abide by the rules, procedurally and substantively. Neither Ms. Sortor nor I will assist you, in any manner, to appropriately apply and/or use the rules. We do not do this for any pro se Plaintiff, nor do we do this for opposing counsel, recognizing here: you are both.

Finally:

Your pattern and habit of secretly recording individuals is at best, unbecoming as a licensed attorney (even if you were suspended during the time you recorded my clients and/or recorded phone conversations with me). and at worse- speaks to more concerning issues. It is particularly telling when you on the one hand assert disabilities which require individuals to only communicate with you in writing (to include seeking to avoid oral hearings on matters in this case) and on the other hand – attempt to elicit verbal communication over the phone – with either Ms. Sortor or I. To be clear: the only oral communication Ms. Sortor or I will have with you, absent court directive to the contrary, is in the following contexts/circumstances: court hearings [to the extent necessary], your deposition, mediation (assuming we are ever in the same room with you and the mediator at the same time) and trial- during cross examination and/or other related trial activity.

I appreciate your attention to these matters and look forward to receiving the information requested herein, requested deposition dates, supplemental disclosures with the items identified herein being provided and return of the signed Agreed Scheduling Order (or whatever revisions you would like considered).

Sincerely,

A handwritten signature in blue ink, appearing to read 'Glynis L. Zavarelli', with a stylized, flowing script.

Glynis L. Zavarelli

Automated Certificate of eService

This automated certificate of service was created by the eFiling system. The filer served this document via email generated by the eFiling system on the date and to the persons listed below. The rules governing certificates of service have not changed. Filers must still provide a certificate of service that complies with all applicable rules.

Envelope ID: 108374923

Filing Code Description: Motion (No Fee)

Filing Description: Motion for Appointment of Counsel Under 42 U.S.C. ?? 3613(b)(1)

Status as of 11/24/2025 8:57 AM CST

Case Contacts

Name	BarNumber	Email	TimestampSubmitted	Status
Glynis L.Zavarelli		gzavarelli@wandzlaw.com	11/23/2025 10:10:17 PM	SENT
Michelle Sortor		msortor@wandzlaw.com	11/23/2025 10:10:17 PM	SENT
Kathryn Copeland		katie@copelandlawtexas.com	11/23/2025 10:10:17 PM	SENT
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Rebecca Young		ryoung@wandzlaw.com	11/23/2025 10:10:17 PM	SENT
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